pellee on the original argument. With them on the briefs were then-*Acting Solicitor General Kneedler*, *William M. Jay*, *Thomasenia P. Duncan*, *David Kolker*, *Kevin Deeley*, and *Adav Noti*.

Seth P. Waxman argued the cause for Senator John McCain et al. as *amici curiae* urging affirmance. With him on the briefs were *Randolph D. Moss*, *Roger M. Witten*, *Scott L. Nelson*, *Alan B. Morrison*, *Brian Wolfman*, *Trevor Potter*, *J. Gerald Hebert*, *Paul S. Ryan*, *Tara Malloy*, *Fred Wertheimer*, and *Donald J. Simon*.*

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*Briefs of *amici curiae* urging reversal were filed for the Alliance Defense Fund by *Benjamin W. Bull*, *Erik W. Stanley*, and *Robert J. McCully;* for the American Civil Rights Union by *Peter Ferrara;* for the American Federation of Labor and Congress of Industrial Organizations by *Jonathan P. Hiatt* and *Laurence E. Gold;* for the Cato Institute by *Benjamin D. Wood*, *Glenn M. Willard*, *William J. McGinley*, and *Ilya Shapiro;* for the Center for Competitive Politics by *Stephen M. Hoersting* and *Reid Alan Cox;* for the Chamber of Commerce of the United States of America by *Jan Witold Baran*, *Thomas W. Kirby*, *Caleb P. Burns*, *Robin S. Conrad*, *Amar D. Sarwal*, *Steven J. Law*, and *Judith K. Richmond;* for the Committee for Truth in Politics, Inc., by *James Bopp, Jr.*, and *Richard E. Coleson;* for the Foundation for Free Expression by *Deborah J. Dewart* and *James L. Hirsen;* for the National Rifle Association by *Charles J. Cooper*, *David H. Thompson*, and *David Lehn;* for the Reporters Committee for Freedom of the Press by *Lucy A. Dalglish* and *Gregg P. Leslie;* and for the Wyoming Liberty Group et al. by *Benjamin Barr*.

Briefs of *amici curiae* urging affirmance were filed for the American Independent Business Alliance by *Brenda Wright*, *Lisa J. Danetz*, and *Daniel J. H. Greenwood;* for the Campaign Legal Center et al. by *Messrs. Potter* and *Hebert*, *Ms. Malloy*, and *Messrs. Ryan*, *Simon*, and *Wertheimer;* for the Center for Political Accountability et al. by *Karl J. Sandstrom;* for the League of Women Voters of the United States et al. by *Douglas T. Kendall*, *Elizabeth B. Wydra*, *David H. Gans*, and *Lloyd J. Leonard;* for the Program on Corporations, Law and Democracy et al. by *Jeffrey D. Clements;* for the Sunlight Foundation et al. by *Gary S. Stein;* and for Norman Ornstein et al. by *H. Christopher Bartolomucci*.

Briefs of *amici curiae* were filed for the State of Montana et al. by *Steve Bullock*, Attorney General of Montana, and *Anthony Johnstone*, Solicitor, by *Terry Goddard*, Attorney General of Arizona, *Mary R. O'Grady*, Solicitor General, and *Orville B. Fitch II*, Acting Attorney General of New

JUSTICE KENNEDY delivered the opinion of the Court.

Federal law prohibits corporations and unions from using their general treasury funds to make independent expendi-

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Hampshire, and by the Attorneys General for their respective States as follows: *Richard Blumenthal* of Connecticut, *Bill McCollum* of Florida, *Mark J. Bennett* of Hawaii, *Lisa Madigan* of Illinois, *Tom Miller* of Iowa, *Steve Six* of Kansas, *Douglas F. Gansler* of Maryland, *Martha Coakley* of Massachusetts, *Michael A. Cox* of Michigan, *Lori Swanson* of Minnesota, *Jim Hood* of Mississippi, *Anne Milgram* of New Jersey, *Gary K. King* of New Mexico, *Roy Cooper* of North Carolina, *Wayne Stenehjem* of North Dakota, *Richard Cordray* of Ohio, *W. A. Drew Edmondson* of Oklahoma, *Thomas W. Corbett, Jr.*, of Pennsylvania, *Patrick C. Lynch* of Rhode Island, *Lawrence E. Long* of South Dakota, *Robert E. Cooper, Jr.*, of Tennessee, *William H. Sorrell* of Vermont, and *Darrell V. McGraw, Jr.*, of West Virginia; for the American Civil Liberties Union by *Steven R. Shapiro*, *Joel M. Gora*, and *Mark J. Lopez;* for the American Justice Partnership et al. by *Cleta Mitchell* and *Michael J. Lockerby;* for the California Broadcasters Association et al. by *Lawrence H. Norton*, *James A. Kahl*, and *Gregg P. Skall;* for the California First Amendment Coalition by *Gary L. Bostwick* and *Jean-Paul Jassy;* for Campaign Finance Scholars by *Allison R. Hayward, pro se;* for the Center for Constitutional Jurisprudence by *Anthony T. Caso*, *Edwin Meese III*, and *John C. Eastman;* for the Center for Independent Media et al. by *Monica Youn;* for the Center for Political Accountability et al. by *Mr. Sandstrom;* for the Committee for Economic Development by *Paul M. Smith;* for the Democratic National Committee by *Robert F. Bauer* and *David J. Burman;* for the Fidelis Center for Law and Policy et al. by *Patrick T. Gillen;* for Former Officials of the American Civil Liberties Union by *Norman Dorsen* and *Burt Neuborne*, both *pro se;* for the Free Speech Defense and Education Fund, Inc., et al. by *William J. Olson*, *Herbert W. Titus*, *John S. Miles*, and *Mark B. Weinberg;* for the Hachette Book Group, Inc., et al. by *Michael J. Chepiga;* for the Independent Sector by *M. Devereux Chatillon;* for the Institute for Justice by *William R. Maurer*, *William H. Mellor*, *Steven M. Simpson*, and *Robert W. Gall;* for Judicial Watch, Inc., by *Paul J. Orfanedes* and *Dale L. Wilcox;* for Justice at Stake et al. by *James E. Scarboro;* for the Michigan Chamber of Commerce by *Richard D. McLellan*, *Gary P. Gordon*, *John D. Pirich*, and *Andrea L. Hansen;* for the Pacific Legal Foundation by *Deborah J. La Fetra* and *Damien M. Schiff;* for Public Good by *Seth E. Mermin;* for Seven Former Chairmen of the Federal Election Commission et al. by *Messrs. Bopp* and *Coleson;* and for Representative Chris Van Hollen et al. by *Bradley S. Phillips* and *Aaron S. Lowenstein.*

tures for speech defined as an "electioneering communication" or for speech expressly advocating the election or defeat of a candidate. 2 U. S. C. § 441b. Limits on electioneering communications were upheld in *McConnell* v. *Federal Election Comm'n*, 540 U. S. 93, 203–209 (2003). The holding of *McConnell* rested to a large extent on an earlier case, *Austin* v. *Michigan Chamber of Commerce*, 494 U. S. 652 (1990). *Austin* had held that political speech may be banned based on the speaker's corporate identity.

In this case we are asked to reconsider *Austin* and, in effect, *McConnell*. It has been noted that "*Austin* was a significant departure from ancient First Amendment principles," *Federal Election Comm'n* v. *Wisconsin Right to Life, Inc.*, 551 U. S. 449, 490 (2007) *(WRTL)* (SCALIA, J., concurring in part and concurring in judgment). We agree with that conclusion and hold that *stare decisis* does not compel the continued acceptance of *Austin*. The Government may regulate corporate political speech through disclaimer and disclosure requirements, but it may not suppress that speech altogether. We turn to the case now before us.

I

A

Citizens United is a nonprofit corporation. It brought this action in the United States District Court for the District of Columbia. A three-judge court later convened to hear the cause. The resulting judgment gives rise to this appeal.

Citizens United has an annual budget of about $12 million. Most of its funds are from donations by individuals; but, in addition, it accepts a small portion of its funds from for-profit corporations.

In January 2008, Citizens United released a film entitled *Hillary: The Movie*. We refer to the film as *Hillary*. It is a 90-minute documentary about then-Senator Hillary Clinton, who was a candidate in the Democratic Party's 2008 Presidential primary elections. *Hillary* mentions Senator

Clinton by name and depicts interviews with political commentators and other persons, most of them quite critical of Senator Clinton. *Hillary* was released in theaters and on DVD, but Citizens United wanted to increase distribution by making it available through video-on-demand.

Video-on-demand allows digital cable subscribers to select programming from various menus, including movies, television shows, sports, news, and music. The viewer can watch the program at any time and can elect to rewind or pause the program. In December 2007, a cable company offered, for a payment of $1.2 million, to make *Hillary* available on a video-on-demand channel called "Elections '08." App. 255a–257a. Some video-on-demand services require viewers to pay a small fee to view a selected program, but here the proposal was to make *Hillary* available to viewers free of charge.

To implement the proposal, Citizens United was prepared to pay for the video-on-demand; and to promote the film, it produced two 10-second ads and one 30-second ad for *Hillary*. Each ad includes a short (and, in our view, pejorative) statement about Senator Clinton, followed by the name of the movie and the movie's Web site address. *Id.*, at 26a–27a. Citizens United desired to promote the video-on-demand offering by running advertisements on broadcast and cable television.

B

Before the Bipartisan Campaign Reform Act of 2002 (BCRA), federal law prohibited—and still does prohibit—corporations and unions from using general treasury funds to make direct contributions to candidates or independent expenditures that expressly advocate the election or defeat of a candidate, through any form of media, in connection with certain qualified federal elections. 2 U. S. C. § 441b (2000 ed.); see *McConnell*, *supra*, at 204, and n. 87; *Federal Election Comm'n* v. *Massachusetts Citizens for Life, Inc.*, 479 U. S. 238, 249 (1986) *(MCFL)*. BCRA § 203 amended

§ 441b to prohibit any "electioneering communication" as well. 2 U. S. C. § 441b(b)(2) (2006 ed.). An electioneering communication is defined as "any broadcast, cable, or satellite communication" that "refers to a clearly identified candidate for Federal office" and is made within 30 days of a primary or 60 days of a general election. § 434(f)(3)(A). The Federal Election Commission's (FEC) regulations further define an electioneering communication as a communication that is "publicly distributed." 11 CFR § 100.29(a)(2) (2009). "In the case of a candidate for nomination for President . . . *publicly distributed* means" that the communication "[c]an be received by 50,000 or more persons in a State where a primary election . . . is being held within 30 days." § 100.29(b)(3)(ii)(A). Corporations and unions are barred from using their general treasury funds for express advocacy or electioneering communications. They may establish, however, a "separate segregated fund" (known as a political action committee, or PAC) for these purposes. 2 U. S. C. § 441b(b)(2). The moneys received by the segregated fund are limited to donations from stockholders and employees of the corporation or, in the case of unions, members of the union. *Ibid.*

C

Citizens United wanted to make *Hillary* available through video-on-demand within 30 days of the 2008 primary elections. It feared, however, that both the film and the ads would be covered by § 441b's ban on corporate-funded independent expenditures, thus subjecting the corporation to civil and criminal penalties under § 437g. In December 2007, Citizens United sought declaratory and injunctive relief against the FEC. It argued that (1) § 441b is unconstitutional as applied to *Hillary;* and (2) BCRA's disclaimer and disclosure requirements, BCRA §§ 201 and 311, 116 Stat. 88, 105, are unconstitutional as applied to *Hillary* and to the three ads for the movie.

The District Court denied Citizens United's motion for a preliminary injunction, 530 F. Supp. 2d 274 (DC 2008) *(per curiam)*, and then granted the FEC's motion for summary judgment, App. 261a–262a. See *id.*, at 261a ("Based on the reasoning of our prior opinion, we find that the [FEC] is entitled to judgment as a matter of law. *See Citizen[s] United v. FEC*, 530 F. Supp. 2d 274 (D. D. C. 2008) (denying Citizens United's request for a preliminary injunction)"). The court held that § 441b was facially constitutional under *McConnell*, and that § 441b was constitutional as applied to *Hillary* because it was "susceptible of no other interpretation than to inform the electorate that Senator Clinton is unfit for office, that the United States would be a dangerous place in a President Hillary Clinton world, and that viewers should vote against her." 530 F. Supp. 2d, at 279. The court also rejected Citizens United's challenge to BCRA's disclaimer and disclosure requirements. It noted that "the Supreme Court has written approvingly of disclosure provisions triggered by political speech even though the speech itself was constitutionally protected under the First Amendment." *Id.*, at 281.

We noted probable jurisdiction. 555 U. S. 1028 (2008). The case was reargued in this Court after the Court asked the parties to file supplemental briefs addressing whether we should overrule either or both *Austin* and the part of *McConnell* which addresses the facial validity of 2 U. S. C. § 441b. See 557 U. S. 932 (2009).

II

Before considering whether *Austin* should be overruled, we first address whether Citizens United's claim that § 441b cannot be applied to *Hillary* may be resolved on other, narrower grounds.

A

Citizens United contends that § 441b does not cover *Hillary*, as a matter of statutory interpretation, because the film